

MASTER SERVICE AGREEMENT

This Master Service Agreement (“Agreement”) is entered into on April 1, 2023, by and between: Alpha Technologies Private Limited (“Service Provider”) and Zenith Retail Corporation (“Client”), collectively referred to as the “Parties.”

1. TERM AND TERMINATION

1.1 This Agreement shall commence on April 15, 2023, and shall continue for a period of thirty-six (36) months.

1.2 Automatic Renewal: Unless either Party provides written notice of termination at least ninety (90) days prior to expiration, the Agreement shall automatically renew for successive one-year terms under the same terms and conditions.

1.3 The Service Provider may terminate this Agreement for any reason with fifteen (15) days’ notice, while the Client may terminate only for cause and subject to proof of material breach.

1.4 In the event of early termination by the Client, the Client shall pay the Service Provider the full contract value as liquidated damages.

2. SCOPE OF SERVICES

The Service Provider shall provide data analytics, cloud infrastructure management, and AI model integration services.

Specific deliverables and performance levels shall be described in Schedule A, which may be amended by the Service Provider at its discretion without prior written approval from the Client.

3. PAYMENT TERMS

3.1 Total contract value: INR 6,000,000, payable in quarterly installments.

3.2 All payments shall be non-refundable, even if services are delayed or terminated early.

3.3 Any late payment shall incur a late fee of 3% per month and may result in immediate suspension of services.

3.4 The Client shall also bear any banking, remittance, or conversion charges related to payments.

4. CONFIDENTIALITY

Each Party shall maintain confidentiality of all proprietary information disclosed.

However, the Service Provider may share Confidential Information with its Affiliates,

subcontractors, or consultants located globally for the purpose of performing this Agreement, without requiring the Client's prior approval.

5. DATA PROTECTION

The Service Provider shall implement commercially reasonable security practices, but shall not be responsible for any indirect or consequential damages resulting from data breaches. Furthermore, the Service Provider may store or process Client Data outside India to ensure "operational efficiency," provided such storage complies with general industry standards.

6. INTELLECTUAL PROPERTY

6.1 All software, algorithms, tools, and models developed under this Agreement, including any modifications to the Client's data, shall remain the exclusive property of the Service Provider.

6.2 The Client shall receive only a limited, revocable license to use Deliverables during the term of this Agreement.

7. LIMITATION OF LIABILITY

The Service Provider's total liability under this Agreement shall not exceed 10% of the total fees paid, regardless of cause or number of claims.

The Client's liability, however, shall be unlimited with respect to payment obligations, misuse of Service Provider's IP, or violation of confidentiality.

8. INDEMNIFICATION

The Client shall indemnify and hold harmless the Service Provider, its Affiliates, directors, and employees against all claims, damages, or expenses arising from the Client's use of Deliverables, regardless of fault.

The Service Provider shall have no reciprocal indemnity obligation.

9. FORCE MAJEURE

A Party affected by a Force Majeure Event shall notify the other Party, but shall not be obligated to resume performance once such event ceases unless it determines it is commercially viable.

If a Force Majeure Event continues for more than 30 days, the Service Provider may terminate this Agreement without liability.

10. NON-SOLICITATION

The Client shall not solicit, hire, or engage any employee or contractor of the Service Provider during the term and for two (2) years thereafter.

Any violation shall incur a penalty equal to one year of the employee's gross salary, payable immediately.

11. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by the laws of Singapore, notwithstanding that both Parties operate in India.

Any dispute shall be resolved exclusively by binding arbitration in Singapore, administered under the Singapore International Arbitration Centre (SIAC) Rules, in the English language.

The Service Provider shall have the sole right to nominate the arbitrator.

12. LIMITATION ON REMEDIES

The Client's sole and exclusive remedy for any breach of this Agreement shall be re-performance of services.

Under no circumstances shall the Client withhold payments or claim refunds.

13. ASSIGNMENT

The Service Provider may assign or subcontract its obligations without Client consent.

The Client may not assign this Agreement to any third party without prior written approval.

14. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the Parties and supersedes all prior communications.

The Service Provider reserves the right to update this Agreement from time to time, and continued use of services shall constitute acceptance of such changes.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

ALPHA TECHNOLOGIES PRIVATE LIMITED

By: _____

Name: Rajesh Mehta

Title: Managing Director

ZENITH RETAIL CORPORATION

By: _____

Name: Anita Verma

Title: Chief Operating Officer